



United States
Attorney's Office
Northern District of Georgia



Two-Time Convicted Felon CEO and His Dietary Supplement Company Convicted of \$4.7 Million Fraud Scheme

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For Immediate Release

U.S. Attorney's Office, Northern District of Georgia

ATLANTA - Following a six-week trial, Jared Wheat and his dietary supplement company, Hi-Tech Pharmaceuticals, Inc. ("Hi-Tech"), were convicted by a federal jury of wire fraud after fabricating documents to deceive customers into believing that the company was certified as compliant with industry manufacturing standards. Hi-Tech, which is headquartered in Norcross, Georgia, was also convicted for laundering millions of dollars in proceeds from the fraudulent scheme.

"After two prior federal felony convictions, Wheat yet again put profits over product quality and consumer safety by forging documents purporting to show that an independent, third-party audit company had certified Hi-Tech as complying with Good Manufacturing Practices. As a result of the defendants' deceit, Hi-Tech received millions of dollars from customers who relied on the fabricated documents," said U.S. Attorney Theodore S. Hertzberg. "The defendants' fraudulent scheme was uncovered through years of dedicated investigation and collaboration among law enforcement partners, and the verdict signals that companies that lie will face stern consequences."

"Making fraudulent claims about FDA-regulated products shows a reckless disregard for public health and safety," said Food and Drug Administration Office of Criminal Investigation Acting Special Agent in Charge Kelly McCoy. "We remain committed to pursuing and bringing to justice those who misrepresent key aspects of their products to unsuspecting customers."

"Hi-Tech's conviction for money laundering provides the expected outcome for any business engaging in this illegal activity," said Demetrius Hardeman, Special Agent in Charge, IRS Criminal Investigation, Atlanta Field Office. "IRS-CI special agents are experts at following the money to uncover the various money laundering schemes carried out by business entities or criminals to hide illegal profits, including their use of layering, cyber laundering, and shell companies."

According to U.S. Attorney Hertzberg, the charges, and information presented at trial: Wheat is the founder, owner, and Chief Executive Officer of Hi-Tech, a large dietary supplement company that claims to have \$100 million in annual revenue. In 2007, the Food and Drug Administration ("FDA") issued new mandatory rules governing proper sanitary, hygienic, and production and process control standards for dietary supplement companies, called Good Manufacturing Practices ("GMP"), that were designed to ensure the safety of dietary supplements. The FDA does not certify that companies are following GMP, so many dietary supplement manufacturers seek certification from third-party, independent audit companies to provide a marketing advantage in a competitive industry.

In November 2010, the Defendants retained a reputable third-party audit company to inspect its facilities, and the audit company identified grave deficiencies in Hi-Tech's compliance with GMP. For example, the audit report listed 75 categories that were not compliant with GMP, which was roughly 40 percent of the total criteria, including gaps and holes in facility doors that could permit rodents to enter, products exposed to dust and other contaminants before packaging, and critical lapses in its product specifications and testing for both raw materials and finished products.

Instead of fixing these quality and safety issues, Wheat and Hi-Tech fabricated a certificate in March 2011 purportedly issued from a company called PharmaTech Consulting ("PharmaTech") stating that Hi-Tech complied with GMP. The defendants listed one of Wheat's former attorneys in Belize as the General Manager of PharmaTech and forged the attorney's signature on the certificate. The defendants did not disclose that PharmaTech was owned by Wheat, had conducted no inspection or audit of Hi-Tech, and was not an independent third-party auditor.

In addition, Hi-Tech doctored the inspection report issued by the third-party audit company to make it appear that PharmaTech had issued a favorable audit report. Specifically, after the legitimate audit report revealed 75 GMP deficiencies, Hi-Tech changed each category from "Not Acceptable" to "Acceptable," and listed PharmaTech as the auditor.

Hi-Tech also fabricated FDA export certificates called Certificates of Free Sale, which indicate that food products are marketed in the United States and eligible for export, by altering dates and product names. Between 2011 and 2013, Hi-Tech sent fraudulent PharmaTech audit reports and GMP certificates, as well as Certificates of Free Sale, to its customers on dozens of occasions.

In many cases, customers forwarded the fraudulent documents to foreign regulators, which permitted Hi-Tech products to be sold abroad based on the fabricated certifications of its compliance with GMP. From March 2011 through April 2013, customers who received the fraudulent documents paid at least \$4,763,292 to Hi-Tech.

On November 21, 2025, a jury convicted Wheat, 53, of Alpharetta, Georgia, of wire fraud. He faces a maximum of 20 years of imprisonment followed by three years of supervised release. Wheat was previously convicted of drug trafficking conspiracy in the U.S. District Court for the Northern District of Alabama in 1991, and he was convicted of conspiracy to commit mail and wire fraud and to introduce misbranded, adulterated, and unapproved drugs into interstate commerce in the U.S. District Court for the Northern District of Georgia in 2009.

The jury also convicted Hi-Tech of wire fraud conspiracy, wire fraud, money laundering conspiracy, and money laundering. Hi-Tech faces a fine of up to twice the value of the criminal proceeds involved in the offenses, which could total nearly \$10 million, and probation of up to five years. In determining the actual sentence, the Court will consider the United States Sentencing Guidelines, which are not binding but provide appropriate sentencing ranges for most offenders.

The sentencing hearing before U.S. District Judge Amy Totenberg has not yet been scheduled.

This case is being investigated by the FDA Office of Criminal Investigations and IRS Criminal Investigation.

First Assistant United States Attorney Nathan P. Kitchens and Assistant United States Attorney Kelly K. Connors are prosecuting the case. The FDA Office of Chief Counsel provided substantial assistance during the prosecution.

For further information please contact the U.S. Attorney’s Public Affairs Office at USAGAN.PressEmails@usdoj.gov or (404) 581-6016. The Internet address for the U.S. Attorney’s Office for the Northern District of Georgia is <http://www.justice.gov/usao-ndga>.

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